

LEHR v. ESQUIVEZ

23CV46620

MOTION TO STRIKE PRAYER FOR PUNITIVE DAMAGES

This is a personal injury dog bite case. Before the Court is a defense motion to strike plaintiff's prayer for punitive damages.

Pursuant to CCP §§ 435 and 436, a party may move for an order striking from a pleading "any irrelevant, false or improper matter" or "any part of any pleading not drawn in conformity" with laws, rules or orders. (See *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) According to defendant, the prayer for punitive damages is not drawn in conformity with the laws due to a lack of sufficient averments.

Contrary to popular folklore, there is no heightened pleading requirement for a punitive damage prayer based on malice or oppression. However, in light of the future evidentiary burden facing plaintiff, it is reasonable to consider that the averments should at least permit a factfinder to have "no substantial doubt" that defendants' were guilty of malice. (*Amerigraphics, Inc. v. Mercury Cas. Co.* (2010) 182 Cal.App.4th 1538, 1559.) To adequately plead a claim for punitive damages under the malice rubric, one must plead with specificity facts demonstrating (1) defendant's conduct was "despicable" and that (2) defendant acted with a willful and conscious disregard for the safety of another in the commission of said conduct. Despicable conduct is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people [and] having the character of outrage frequently associated with crime." (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 716.) Stated another way, "punitive damages are appropriate if the defendant's acts are reprehensible ... [and which] could be described as evil, criminal, recklessly indifferent to the rights of the [plaintiff], or with a vexatious intention to injure." (*Food Pro International, Inc. v. Farmers Ins. Exchange* (2008) 169 Cal.App.4th 976, 994-995.)

There are not many cases finding conduct despicable in the context of non-intentional wrongdoing. (See, e.g., *Sumpter v. Matteson* (2008) 158 Cal.App.4th 928, 936 [driving recklessly, while impaired, was despicable]; *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210 [skiing recklessly, but not impaired, not despicable]; *Pfeifer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270, 1300-1301 [failure to warn of product's carcinogenic properties was despicable]; *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1221-1222 [sexually abusing a minor was despicable].) The parties have not cited, and this Court has not uncovered, any California precedent on point; However, the Court of Appeals of North Carolina has addressed this precise issue, and formulated the following rule, which this Court finds persuasive:

“Permitting a dog that is known to have twice attempted without provocation to bite a human being to run loose in an area habitated or occupied by other people is evidence of a reckless or wanton indifference to or disregard for the safety of others, sufficient to support an award of punitive damages.” *Hunt v Hunt*, 357 S.E.2d 444, 447 (N.C. 1987).

In the case at bar, plaintiff alleges that defendant had a dog roaming off-leash when he arrived to perform an inspection. Plaintiff’s reasoning for being at the property is not in dispute; however, the operative pleading provides no basis for concluding that allowing said dog to remain off-leash when he arrived was despicable. There are no averments that the dog had dangerous propensities (i.e., tried to bite others) or that defendant was consciously disregarding a known risk that his dog would bite someone. Defendant is presumably liable for plaintiff’s injuries based on strict liability, but going further into “fault” determinations – especially those required for punitive damages – requires more averments regarding defendant’s wrongdoing (actus reas), defendant’s mindset (mens rea), and the dog’s disposition. (See, e.g., *Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 666-667; *Salinas v. Martin* (2008) 166 Cal.App.4th 404, 413-414; *Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1369-1370; *Donchin v. Guerrero* (1995) 34 Cal.App.4th 1832, 1838; *Drake v. Dean* (1993) 15 Cal.App.4th 915, 922.)

Motion to strike is GRANTED, but without prejudice to a future motion for leave to amend to add a prayer for punitive damages if, in the course of discovery, a factual basis for such a prayer is revealed.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

CONNOLLY v. DE LA CRUZ

23CV46549

CROSS-DEFENDANT'S DEMURRER AND MOTION TO STRIKE

This civil action stems from a dispute over easement rights. Before the Court is a demurrer directed to the operative Cross-Complaint filed 03/09/23, as well as a demurrer and motion to strike directed at the First Amended Answer filed 05/01/23.

The salient facts are as follows:

Plaintiff owns APN parcels 048-025-034 and 050-002-120, commonly and collectively referred to as Cain Ranch (and hereinafter referred to as "the Ranch"). The property was previously burdened by a 16.5 foot prescriptive easement belonging to Linkletter Properties for ingress and egress to adjacent property (with the right to erect a fence with a gate), but plaintiff maintained a co-equal easement over a similar strip for cattle grazing and herding. According to plaintiff, the dueling co-equal easements were unburdened by judgment, merger and eventual extinguishment. Despite the loss of said easement, defendant accessed the strip and removed a portion of the perimeter fence restraining cattle from roaming free.

Defendant owns APN 048-051-034, and is the elected road manager at Valley Hills Estates. According to defendant, the aforementioned easement overlaps a 60-foot right of way in the referenced subdivision parcel map. Recently, some trees fell in the disputed easement, and plaintiff erected a fence post therein – both of which to defendant qualify as impediments.

Although the matter of easements is ordinarily fairly routine and easy to navigate with the right recordings and expertise, plaintiff and defendant have engaged in what can best be described as over-convoluted explanations. While the parcel maps assist, "a petition for an injunction to restrain real property encroachments or protect easements must depict by drawings, plot plans, photographs, or other appropriate means, or must describe in detail the premises involved, including, if applicable, the length and width of the frontage on a street or alley, the width of sidewalks, and the number, size, and location of entrances." Barren references to recordings and judgments does not provide this Court the required precision to even start touching the merits. Of course, with this being a demurrer, the merits of the claim are in fact not material so long as the factual averments are not clearly refuted by the recordings proffered – and they are not.

Nevertheless, plaintiff (cross-defendant) is correct that uncertainty exists regarding who ought to be the real party in interest for purposes of the cross-complaint. Even though